

Sri Krishna Lal v. State of U.P. — Clause 6.5 remittal of disputed PuVVNL bill

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · WRIT - C No. - 6882 of 2020 · **Writ disposed; apply under Clause 6.5 within two weeks**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ seeking mandamus to decide two pending applications that disputed an electricity bill, holding that Clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded an alternative remedy. Liberty was granted to apply under Clause 6.5 within two weeks; any such application against the disputed assessment and allied issues is to be considered in accordance with law and disposed of within six weeks.

FACTUAL SUMMARY

Sri Krishna Lal and twenty-eight others sought a mandamus under Article 226 directing the Executive Engineer and Managing Director of Purvanchal Vidyut Vitran Nigam Ltd. to decide applications dated 29 July 2019 and 2 September 2019. They disputed an electricity bill and raised allied grievances. Counsel for the licensee objected that Clause 6.5 of the U.P. Electricity Supply Code, 2005 afforded an alternative remedy, with a further remedy under the UPERC (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2007.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy-disputed-assessment

HOLDING

On a preliminary objection that a disputed bill and allied grievances were remediable under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and thereafter under the UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007, the Court disposed of the writ with liberty to approach that forum, directing that if the petitioner applied under Clause 6.5 against the disputed assessment and allied issues within two weeks, the application shall be considered in accordance with law and disposed of within a further six weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court accepted the licensee's preliminary objection and relegated the petitioners' disputed assessment and allied issues to Clause 6.5 rather than issuing mandamus on the pending applications. ¶ 1

6.5-representation-as-appropriate-remedy Representation under Clause 6.5 was treated as the appropriate first remedy for the disputed bill, with a further path under the 2007 CGRF and Ombudsman Regulations. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The petitioners had come disputing the bill; the Court treated Clause 6.5 as the statutory remedy against the disputed assessment and allied issues. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ASSESSMENT AND ALLIED BILLING GRIEVANCES

Writ disposed on alternative remedy without examining the bill or the applications dated 29.7.2019 and 2.9.2019. ¶ 1